

practised on the human or animal body. It followed that in most cases, only the step which referred to the examination phase and involved the collection of data could actually be of a technical nature and, therefore, concerned with the criterion "practised on the human or animal body". Additional intermediate steps which concerned for example the adjustment or preparation of the apparatus with which the collection of data would be performed could be introduced into a method claim for completeness. However, since these additional features were not part of one of the steps necessary for making the diagnosis, they were to be ignored when assessing the diagnostic character of the method. The issue of whether or not these intermediate features were of a technical nature and practised on the human or animal body was, therefore, irrelevant for this question.

In T 143/04 claim 1 at issue related to a method of diagnosing Alzheimer's disease in a living subject. The board noted that data processing using an automated apparatus was not actually part of the examination phase which involved the data collection phase, but it resulted from a subsequent, technical step, intermediate between the data collection and the comparison of these collected data with standard values. Such intermediate steps were not to be considered when assessing the diagnostic character of the method. The claim at issue included all the features of a diagnostic method practised on the human or animal body as defined in the opinion G 1/04. The patenting of such a method was prohibited by Art. 52(4) EPC 1973 (Art. 53(c) EPC).

c) Clarity of a claim relating to diagnostic methods

In G 1/04 the Enlarged Board of Appeal found as follows: If diagnosis as the deductive medical or veterinary decision phase was a purely intellectual exercise, the feature pertaining to the diagnosis for curative purposes and the features relating to the preceding steps which were constitutive for making the diagnosis represented the essential features of a diagnostic method. Thus, in order to satisfy the requirements of Art. 84 EPC 1973, an independent claim relating to such a method had to include these features. If a non-technical feature was to be regarded as constitutive for defining the invention, it had likewise to be included as an essential feature in the independent claim.

d) Intermediate findings of diagnostic relevance

In G 1/04 the Enlarged Board of Appeal stated that intermediate findings of diagnostic relevance must not be confounded with diagnosis for curative purposes *stricto sensu*, which consisted in attributing the detected deviation to a particular clinical picture. It followed that a method for obtaining such results or findings did not constitute a sufficient basis for denying patentability by virtue of Art. 52(4) EPC 1973.

In T 1016/10 the appellant claimed an analogy to T 1255/06, arguing that step (iv) was missing and that thus the claim could not fall under the exception clause. The board disagreed. The appellants had argued that an "amyloidogenic disorder", identified as step (iv) in claim 1, merely represented an "intermediate finding", which according to reasons 6.2.3 of G 1/04, were not to be confounded with diagnosis for curative purposes *stricto sensu*. Such an intermediate finding did not make it possible to immediately determine the nature of a disease and to decide on a particular course of medical treatment

(**T. 385/86**). The board however considered that an "amyloidogenic disorder" was not merely an "intermediate finding" but did indeed represent a "particular clinical picture".

C. Novelty

1.	General	78
2.	State of the art	78
2.1.	General	78
2.2.	Applications with same filing or priority date	79
2.3.	Relevant date of documents	79
2.4.	Prior rights – Article 54(3) EPC	79
2.4.1.	European prior rights	79
2.4.2.	Applicability of Article 54(3) EPC in cases of potentially colliding European parent and divisional applications	80
2.4.3.	Excluded national prior rights	81
2.4.4.	PCT applications as state of the art	81
2.5.	Non-prejudicial disclosures under Article 55 EPC	82
2.6.	In-house knowledge not published before the priority date	83
2.7.	Prior art acknowledged in a patent application	83
2.8.	Common general knowledge	84
2.8.1.	Definition of "common general knowledge"	84
2.8.2.	Patent specifications as common general knowledge	85
2.8.3.	Specialist journals as common general knowledge	85
2.8.4.	Databases as common general knowledge	86
2.8.5.	Proof of common general knowledge	86
3.	Availability to the public	88
3.1.	General	88
3.2.	Ways of making information available to the public	88
3.2.1.	Publications and other printed documents	88
a)	General	88
b)	Company papers	88
c)	Advertising brochure	89
d)	Report available in the specialist field	90
e)	Books	90
f)	Instruction manual	91
g)	Patent and utility models	91
h)	Trade names	92
i)	Abstracts of documents	92
3.2.2.	Lectures and oral disclosure	93
3.2.3.	Internet disclosures	94
a)	General	94
b)	Public availability of a document stored on the World Wide Web	94
c)	Publication date	95
3.2.4.	Public prior use	98
a)	General	98
b)	Public prior use occurred	98
c)	No public prior use	99
d)	Internal structure or composition of a product	101
3.2.5.	Biological material	105
3.3.	The concept of "the public"	105

3.3.1	Sale to a single customer	105
3.3.2	Making available to a person not skilled in the art	106
3.3.3	A limited circle of people	106
3.3.4	Public library	107
3.4	Obligation to maintain secrecy	108
3.4.1	General	108
3.4.2	Parts for serial production	108
3.4.3	Distribution of prospectuses, technical descriptions	109
3.4.4	Commercial relationships and interests	109
3.4.5	Demonstrating products for presentation purposes	111
3.4.6	Presenting the product in writing	111
3.4.7	Making samples/products available for test purposes	112
3.4.8	Conferences	114
3.4.9	Public availability of documents submitted for standardisation	115
3.4.10	Joint venture and other commercial agreements	115
3.4.11	Paper submitted to obtain an academic degree	116
3.4.12	Medical field	116
3.4.13	Notary	117
3.5	Evidence	117
3.5.1	Burden of proof	117
3.5.2	Standard of proof	117
	a) General	117
	b) Public prior use	118
	c) Internet – proof of the date of availability	118
4	Determining the disclosure of the relevant prior art	119
4.1	General rules of interpretation	119
4.2	Combinations within a prior art document	122
4.3	Taking implicit features into account	124
4.4	Taking intrinsic features into account	127
4.5	Taking equivalents into account	127
4.6	Taking drawings into account	128
4.7	Taking examples into account	129
4.8	Broad claims	130
4.9	Deficiencies and mistakes in a disclosure	130
4.10	Accidental disclosure	131
4.11	Reproducibility of the content of the disclosure	132
5	Ascertaining differences	134
5.1	Comparing each individual item from the prior art	135
5.2	Distinguishing features	135
5.2.1	Difference in wording	136
5.2.2	Differences in values	137
5.2.3	Difference in parameters	138
5.2.4	Difference in composition	139
5.2.5	Functional features	139
5.2.6	Generic disclosure	141
5.2.7	Product claim with process features	141
5.2.8	Non-technical distinguishing features	142

6.	Chemical inventions and selection inventions	142
6.1.	General	142
6.2.	Novelty of chemical compounds and groups of compounds	143
6.2.1	Anticipation of certain compounds	144
a)	Definition of a substance by its structural formula or other parameters	144
b)	Selection of starting substances from different lists	145
c)	Selection on the basis of a general formula	146
6.2.2	Novelty of groups of substances	147
6.2.3	Novelty of enantiomers	148
6.2.4	Achieving a higher degree of purity	148
6.3.	Selection of parameter ranges	150
6.3.1	Selection from a broad range	150
6.3.2	Overlapping ranges	153
6.3.3	Multiple selection	155
6.4.	Subject-matter group	157
7.	First and second medical use	157
7.1.	First medical use	157
7.1.1	Introduction	157
7.1.2	Scope of a purpose-related product claim	158
7.1.3	Protection of a preparation in the form of a "kit-of-parts"	159
7.1.4	Further technical information as compared with the state of the art	159
7.2.	Second (or further) medical use	159
7.2.1	Introduction	159
7.2.2	Transitional provisions	161
7.2.3	Purpose-limited product claims and Swiss-type claims – scope of protection	162
7.2.4	Novelty of the therapeutic application	163
a)	General	163
b)	New therapeutic application based on the group of subjects to be treated	164
c)	New technical effect	165
d)	Same illness	166
e)	New dosage regimen	167
f)	New therapy with a different mode of administration	168
g)	Interpretation of "substance or composition"	168
h)	Statement of purpose of surgical use for a known instrument	170
i)	Discovery of a previously unknown property of a compound underlying the known effect	171
j)	Whether there is a therapeutic method	172
8.	Second (or further) non-medical use	173
8.1.	Novelty criteria for use claims and process claims containing a purpose feature	173
8.1.1	General issues decided before the Enlarged Board of Appeal	173
8.1.2	Non-therapeutic treatment of animals	174
a)	Non-therapeutic application	175
8.1.3	Applicability of G 2/88 and G 6/88 to process claims	175